

24STCV26217 24STCV26217

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Case Number: 24STCV26217 Hearing Date: August 17, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion for Attorney

Fees, Costs and Expenses

Plaintiffs' Motion for Attorney Fees, Costs and Expenses is denied as to attorney fees, and the request for costs and expenses is denied without prejudice.

BACKGROUND

Plaintiffs Fabian Ladera and Israel Torreblanca Benigno (Plaintiffs) filed this action against General Motors LLC (GM) and Felix Chevrolet (collectively, Defendants), alleging that they purchased a new 2021 Chevrolet 1500 that manifested defects GM failed to repair after a reasonable number of attempts.

The causes of action are: (1) Breach of Implied Warranty of Merchantability under the Song-Beverly Warranty Act; and (2) Breach of Express Warranty under the Song-Beverly Warranty Act.

The parties settled through an offer to compromise under Code of Civil Procedure section 998, under which Plaintiffs are the prevailing party, and GM agreed to pay the attorney fees and costs as determined by the Court. The Court dismissed the action on December 18, 2025, and the clerk served the order of dismissal on counsel by electronic service that same day.

On June 16, 2026, Plaintiffs filed a Motion for Attorney Fees, Costs and Expenses. GM filed an Opposition.

LEGAL STANDARD

A notice of motion claiming attorney fees for services up to and including the rendition of judgment in the trial court “must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case.” (Cal. Rules of Court, rule 3.1702(b)(1).)

Rule 8.104(a)(1) sets that time at the earliest of three dates. The first is 60 days after the superior court clerk serves a document entitled “Notice of Entry” of judgment or a file-endorsed copy of the judgment, showing the date it was served. The second is 60 days after a party serves a document entitled “Notice of Entry” of judgment or a file-endorsed copy of the judgment, accompanied by proof of service. The third is 180 days after entry of judgment.

Neither of the first two periods runs unless a single, self-sufficient document satisfies every condition the rule states. (*Alan v. American Honda Motor Co., Inc.* (2007) 40 Cal.4th 894, 905.) Where the clerk serves electronically, a signed certificate of service by the clerk must be attached to, stamped on, or embedded in the document served, so that the time to appeal can be determined from a single document. (*Wing Inflatables, Inc. v. Certain Underwriters at Lloyd's* (2025) 112 Cal.App.5th 1108, 1117.)

All dismissals ordered by the court must be in the form of a written order signed by the court and filed in the action, and those orders, when so filed, constitute judgments and are effective for all purposes. (Code Civ. Proc., § 581d.)

ANALYSIS

GM argues that the Motion is untimely because Plaintiffs did not serve it until June 19, 2026, 183 days after the action was dismissed. (Opp., p. 3:5-9, 13-27.) Plaintiffs respond that they served and filed the Motion on June 16, 2026, within 180 days of the dismissal, and that the June 19 date on the original proof of service was a typographical error corrected by a Notice of Errata. (Reply, p. 3:3-20; Suppl. Nita Decl., ¶¶ 4-7, Exs. A, B.)

Both parties measure the deadline by the third of the three periods described in rule 8.104(a)(1), 180 days after entry of judgment, and neither addresses the first two. The rule directs the Court to the earliest of the three, and an earlier period applies here.

The Court dismissed this action on the Court's motion under Code of Civil Procedure section 664.6, by written order signed by the Court and filed on December 18, 2025. That order constitutes a judgment and is effective for all purposes. (Code Civ. Proc., § 581d.)

The clerk electronically served a file-endorsed copy of that order the same day. The clerk's certificate of service by electronic service is appended to the order on the mandatory form and was served with it as a single instrument. Accordingly, the December 18, 2025 service of the Order of Dismissal triggered the 60-day period under rule 8.104(a)(1)(A). The sixtieth day was February 16, 2026, a judicial holiday, so the last day on which Plaintiffs could serve and file a motion claiming attorney fees was February 17, 2026. (Cal. Rules of Court, rule 1.10(b).) Plaintiffs served and filed the Motion nearly four months later, on June 16, 2026. (Suppl. Nita Decl., ¶¶ 3-4, Ex. A.) Accordingly, the motion is denied as untimely.

Rule 3.1702 governs claims for attorney fees and says nothing about costs, so it supplies no ground for denying the costs and expenses the Motion requests. Plaintiffs claimed those costs by verified Memorandum of Costs, and GM has separately noticed a Motion to Tax Costs directed to the same items set for September 10, 2026. (Reply, p. 10:11-13.) The request for costs and expenses made in this Motion is denied without prejudice to their determination at that hearing.

CONCLUSION

Plaintiffs' Motion for Attorney Fees, Costs and Expenses is denied as to attorney fees, and the request for costs and expenses is denied without prejudice.